

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 13, 2026
8:30 AM/1:30 PM

8. JARED SILVA V. GRACE SILVA

25FL0397

On May 11, 2026, Respondent filed a Request for Order (RFO) seeking to clarify support orders and seeking visitation orders. All required documents were served on May 18th.

Only Respondent appeared at Child Custody Recommending Counseling (CCRC) on June 26, 2026. Because Petitioner did not appear, a report without recommendations was prepared on June 26th. It was mailed to the parties on June 29th.

Petitioner has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Petitioner. He had notice of the pending requests and chose not to file an opposition to the RFO. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Respondent asks the court to adopt her proposed Xspouse for overtime and commission calculation purposes. She further requests an order for the children to continue their homeschooling program. Finally, she asks that the children reside primarily with Respondent or, alternatively, for them to be in her care while Petitioner is working.

Respondent’s moving papers refer to an “attached” Xspouse report, however no such report is attached. The parties are ordered to appear and Respondent is ordered to bring with her a copy of the proposed Xspouse report.

The parties are also ordered to appear to present argument on the issues of schooling and visitation.

TENTATIVE RULING #8: RESPONDENT’S MOVING PAPERS REFER TO AN “ATTACHED” XSPOUSE REPORT, HOWEVER NO SUCH REPORT IS ATTACHED. THE PARTIES ARE ORDERED TO APPEAR AND RESPONDENT IS ORDERED TO BRING WITH HER A COPY OF THE PROPOSED XSPOUSE REPORT.

THE PARTIES ARE ALSO ORDERED TO APPEAR TO PRESENT ARGUMENT ON THE ISSUES OF SCHOOLING AND VISITATION.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR

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BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.